

partial representations but also suppresses some material facts. *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311. “Our Supreme Court has described the necessary relationship giving rise to a duty to disclose as a “transaction” between the plaintiff and the defendant.” *Id.* If a fiduciary relationship does not exist between the parties of a transaction, a fraudulent concealment claim may be brought (1) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (2) when the defendant actively conceals a material fact from the plaintiff; and (3) when the defendant makes partial representations but also suppresses some material facts. *Id.* “Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” *Id.* “Under California law, manufacturer warranties that accompany the sale of a vehicle without regard to the substantive terms of the sale contract between the buyer and the dealer are independent of the sale contract.” *Davis v. Nissan North America, Inc.* (2024) 100 Cal.App.5th 825, 837.

In *Dhital v. Nissan North America, Inc.* (2022) 84 Cal. App. 5th 828, the First District Court of Appeal found plaintiffs sufficiently alleged a transactional relationship with Nissan by alleging they purchased a vehicle from a Nissan dealership, with an express warranty backed by Nissan, and that Nissan’s authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. Here, Plaintiff fails to allege where the vehicle was purchased from, that the vehicle was purchased from an authorized dealership, and that Defendant’s authorized dealerships are agents for purposes of the sale. Under *Dhital*, Plaintiff fails to allege sufficient facts to establish a duty to disclose.

Plaintiff argues that by entering a warranty contract, the parties established a preexisting relationship giving rise to a duty to disclose. The existence of an express warranty that is provided as part of the sale of a new vehicle does not establish a direct transactional relationship. The opposition fails to provide sufficient facts to show that a duty to disclose can be adequately pled, therefore the Demurrer is **SUSTAINED** without leave to amend.

Economic loss rule. Finally, Defendant alleges that the Sixth Cause of Action is barred by the Economic Loss Rule. The Economic Loss Rule does not bar fraudulent concealment claims. *Dhital v. Nissan North America, Inc.* (2022) 84 Cal. App. 5th 828. The Demurrer is **OVERRULED** on the grounds that it is barred by the Economic Loss Rule.

In summary, the Demurrer is **OVERRULED** as to the First, Second, Third, and Fourth Causes of Action. The Demurrer is **SUSTAINED** without leave to amend as to the Sixth Cause of Action on the grounds that Plaintiff has failed to establish a duty to disclose. Defendant has provided a proposed order that will be modified to reflect the Court’s ruling.

IN RE: SAWICKI

CASE NUMBER: 26CV-0211224

Tentative Ruling on Petition for Change of Name: Petitioner Barbara A. Sawicki seeks to change her name to Barbara A. Bachrach. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.